

# Privacy Reconciliation — Updated Home & New Data Flows vs. the Privacy Corpus

**Date:** 2026-07-13 · **Type:** compliance deep-dive + gap register · **Status:** findings for owner/DPO/counsel — nothing silently changed

**Trigger:** owner — *"do a deep dive and track. most specially we updated our home."*

**Method:** 4-front audit — (1) redesigned couple **Home/Event Overview** data flows (worktree feat/overview-council-redesign @ 4eb39a329, PR #3188), (2) new 2026-07-12 capture features + SPI/minor + build-state (grounded in `origin/main` migrations), (3) the live `setnayan.com/privacy` notice content, (4) the 9-doc privacy corpus for canonicity + conflicts. Load-bearing facts re-verified directly against `origin/main` before writing.

**Headline.** Setnayan is **collecting sensitive personal information and minors' data in production, live, with disclosure gaps**. Profile **religion + civil status + gender** capture is live with no flag; the **dependents** table (minors' birth-date + religion + sex + godparent third-party emails) is recorded as flag-ON in prod (DECISION\_LOG 2026-07-13); the onboarding **events.signature\_details** path collects a child's DOB/gender and a pregnancy due-date with **no flag and no consent stamp**; and the couple **Home** now renders explicit religious-rite data. Meanwhile the **live privacy notice (last updated 2026-07-04)** mentions **none** of faith, minors, device-fingerprint, or e-gift handles — and **affirmatively denies collecting biometrics** while a biometric-enrollment feature is built. The freshest master dossier (2026-07-12) is the **narrowest** SPI declaration in the corpus and is **uncommitted**.

## A. LIVE-NOW gaps — SPI / minors / financial PI collected in prod, undisclosed (SEV-1)

Ranked by exposure. "Live" = shipped on `origin/main` with capture reachable in production.

| # | Data collected                          | Where                                                                                       | RA 10173 class                                                  | Build state (verified)                                                                                                                                    | Disclosed anywhere?                             |
|---|-----------------------------------------|---------------------------------------------------------------------------------------------|-----------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------|
| 1 | Religion + civil status + gender (self) | <code>users.religion</code> / <code>civil_status</code> / <code>sex (+ *_consent_at)</code> | ■ SPI §3(I) — religion & marital status; sex sensitive-adjacent | <b>LIVE, no flag</b> , consent-stamped. <code>profile/actions</code> writes directly (verified <code>origin/main</code> ). Gender added today (PR #3209). | ■ Notice/dossier §5 list only biometrics as SPI |

|   |                                                                                                                                                                                                             |                                                      |                                                                |                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                               |
|---|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------|----------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------|
| 2 | <p><b>Dependents</b> — minor's birth_date + sex + religion; <b>godparent name + email</b> (3rd party); godchild-birthday emails to that 3rd party</p>                                                       | dependents, godparents                               | <p>■■ Minor + SPI + third-party PII</p>                        | <p><b>Shipped; flag NEXT_PUBLIC_DEPENDENT PEOPLE default OFF in code, but DECISION_LOG 2026-07-13 records owner set it =1 in prod ("long done").</b> If so → <b>collecting now</b>; godchild emails go live next deploy. Household RLS shares a child's record with the spouse and <b>persists after annulment/separation</b> (owner rule B6).</p> | <p>■ Zero coverage. amendment (07-05) still says person-graph is "adults-only... minors not processed" — now contradicted</p> |
| 3 | <p><b>Onboarding specialty fields</b> — christening child_birth_date + child_gender; gender-reveal <b>pregnancy due_date</b>; ceremony_rite/rite_type (religion); birthday celebrant_age</p>                | events.signature JSONB                               | <p>■■ Minor's sex + health-adjacent (pregnancy) + religion</p> | <p><b>LIVE, NO flag, NO consent stamp.</b> With all 14 event types enabled (#3127), a christening/gender-reveal create-flow accepts these today. Gender-reveal due_date contradicts the council's own Q3 "defer due-date capture until counsel clears."</p>                                                                                        | <p>■ Not disclosed; <b>collectable outside the counsel gate that governs the parallel dependents table</b></p>                |
| 4 | <p><b>Explicit religious-rite data on the couple HOME</b> — Muslim nikah overlay (mahr_description free-text dower, gender_separation, wali/witness/imam guest roles), Chinese/Tsinoy tea-ceremony tile</p> | events.*, guests.role, surfaced by Overview overlays | <p>■ SPI §3(l) religion</p>                                    | <p><b>LIVE</b> — rendered on /dashboard/[eventid] Home</p>                                                                                                                                                                                                                                                                                         | <p>■ Notice never mentions ceremony as a data category</p>                                                                    |

|   |                                                                                                                            |                                    |                                                                                       |                                                                                                                                                                        |                                                                                                                                                                                                                                                                   |
|---|----------------------------------------------------------------------------------------------------------------------------|------------------------------------|---------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 5 | <b>Biometric face enrollment</b> — selfie + mandatory biometric-consent flow; <code>face_vector</code> column exists       | <code>guest_face_enrollment</code> | ■ <b>NOT</b> §13 biometric                                                            | <b>Built.</b> Code comment: vector is <b>DORMANT</b> (image-only enrollment until an embedder/model is live) → selfies + consent captured now, vectors not yet stored. | ■ <b>Notice affirmatively DENIES it</b> — lists "Face biometrics or any other biometric data" under " <b>What we do not collect.</b> " Denial is currently technically-true-for-vectors but false the moment the model ships, and the consent/table already exist |
| 6 | <b>Pabuya e-gift handles</b> — couple's own gcash/maya/bank/paypal handle + <code>account_name</code> + receiving-QR image | <code>event_egift_method</code>    | ■ <b>Financial PI</b> (not §13 SPI); display-only by design (no amount/ledger column) | <b>Table LIVE;</b> public guest route <code>PABUYA_PUBLIC_ROUTE_ENABLED</code> in prod per <code>DECISION_LOG</code> 2026-07-13                                        | ■ <b>Zero mentions in all 9 privacy notices</b> — 1 fully-undocumented processing activity                                                                                                                                                                        |

**Data-minimization note (home):** the Overview server component loads **full guest rows** — email, mobile, `dietary_restrictions/meal_preference` (health-adjacent), and `photo_consent/faceblock_enabled/face_recognition_excluded` (biometric-adjacent) — into memory even though only aggregate counts render. Co-host/invitee **email addresses are displayed** in the Hosts card, read via the RLS-bypassing admin client. Not a disclosure gap, but a minimization item worth a pass.

**What bounds the exposure (good news):** on the *home surface specifically*, dependents/minors' Year-view data is **flag-off and its commits are not in the redesign branch** (year-view code asserts "zero PII, no birthdates"), and **no e-gift handle is surfaced on any home surface**. So gaps #2 and #6 are live in their own routes, not additionally leaked onto Home.

## B. Doc-corpus conflicts & staleness to reconcile (SEV-2/3)

The corpus is **four layers, no single canonical doc**. Deepest/most complete = the **tracked NPC Compliance/ pack** (11-system RoPA + DPIAs). The shiny **NPC Privacy Compliance Dossier 2026-07-12.md** is the freshest executive summary but the **narrowest** SPI declaration — treat it as a summary annex, not the filing backbone.

- **Device-fingerprint "is it live?" — direct conflict.** New dossier §4 + `Device_Fingerprint_Data_Use_DPO_Review_2026-07-12` say flag-OFF / collects nothing. But `01_Contracts/Anti_Fraud_Privacy_Policy_Amendment_DRAFT_2026-07-08` B.1 says "*we analyse signals we already hold: your device fingerprint... already active (shipped 2026-07-07)*" and DPO Designation B.5 lists it "live 2026-07-07." **Reconcile before either publishes.**
- **Dossier's PIA claims the fingerprint disclosure was "published in the public privacy notice 2026-07-12."** The live notice is dated **2026-07-04** and contains **no** device-fingerprint language. The claim is unsupported by the page.
- **SPI under-count in the new dossier.** §5 names only biometric vectors. The NPC pack treats **vendor gov-ID + liveness + AMLC/PEP sanctions** as the SPI categories that *trigger NPC registration* — the new dossier drops the entire vendor-verification surface. Filing the dossier as-is would under-declare.

- **DPO contact split.** New dossier → dpo@setnayan.com; every other doc → iscasasolaii@gmail.com. Two published DPO addresses. (DPO **identity** is consistent everywhere: the proprietor, Indalecio S. Casasola II — no doc names "Claire.")
- **Response-SLA split.** Dossier says **15 business days**; Privacy Policy §9 + DPO Designation say **7 business days**.
- **Retention — binding policy is stale.** Setnayan\_Privacy\_and\_Security\_Policy.md §4 has **no 10-year floor** (5y/7y model) and contradicts the newer Data\_Retention\_Schedule\_2026-07-11 (10-yr floor on payments/OR + contracts). The schedule's own §4 flags a **live gap**: account hard-delete **leaves chat PII behind**. Vendor-verification retention (90d hot → 7y cold) exists in the policy but is **absent from both the new schedule and the dossier ROPA**.
- **Subprocessor list omissions.** /privacy names **Persona + Anthropic** as cross-border recipients but leaves them **out of the Subprocessors table**; **Suno** (music generation) is missing from policy §10.
- **Cookie consent is localStorage-only** (setnayan-cookie-consent-v1) — no server-side consent-events log, which weakens RA 10173 proof-of-consent retention.
- **Stale one-pager.** Setnayan\_AI\_Data\_Use\_DPO\_Review\_2026-06-29 frames the AI as a *paid* assistant learning from *browsing behavior*; current direction is **deterministic + free** — the behavioral-personalization framing reads stale.
- **Durability risk.** The three newest/most-relied-on docs — **dossier (07-12), retention schedule (07-11), fingerprint one-pager (07-12)** — are **UNTRACKED (uncommitted)**, i.e. the current "canonical" master + retention authority are the least-durable files in the set.

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## C. Owner / DPO / counsel decision queue (NOT actioned here — surfaced per corpus rules)

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These are load-bearing and/or legal; I did not change the notice, the dossier, or any flag.

1. **Confirm the prod flag reality.** DECISION\_LOG asserts NEXT\_PUBLIC\_DEPENDENT\_PEOPLE=1 and PABUYA\_PUBLIC\_ROUTE\_ENABLED=1 are ON in Vercel prod (unverifiable from the repo). If ON, the dossier must add a **live SPI+minors** processing activity (dependents) and a **financial-PI** activity (e-gift), incl. the household RLS spread + post-dissolution retention.
  2. **Close the signature\_details SPI hole.** Either gate the christening child\_birth\_date/child\_gender, gender-reveal due\_date, and ceremony\_rite fields the same way the dependents table is gated, or attach equivalent consent copy + retention. The un-flagged due-date field directly contradicts the council's own defer recommendation.
  3. **Fix the biometric denial.** The notice's "we do not collect biometrics" is a landmine given guest\_face\_enrollments + consent flow exist and vectors go live when the embedder ships. Rewrite to "optional, opt-in, per-event, currently image-only" rather than a flat denial.
  4. **Publish the faith / minors / e-gift / device-fingerprint disclosures** in the public notice + add ROPA rows. These are the four categories the notice omits.
  5. **Reconcile the corpus conflicts** in §B: pick one DPO email + one SLA; add the 10-yr floor + vendor-verification class to the binding policy; add Persona/Anthropic/Suno to the subprocessor list; resolve the device-fingerprint live/off contradiction; decide on a server-side consent log.
  6. **External counsel sign-off** for the §3(I)/minors/third-party-notify cluster and the BSP-OPS e-gift question — the specs flagged *external* review as required; the owner-is-DPO marking resolves the internal step only.
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## D. What was tracked in this pass

- This document (the gap register).
- `DECISION_LOG.md` row (2026-07-13).
- Memory: `project_setnayan_privacy_reconciliation.md` + index pointer.
- The three previously-untracked privacy docs (dossier 07-12, retention schedule 07-11, device-fingerprint one-pager 07-12) committed into git history alongside this, so the canonical set is durable.

**Not done (needs owner/DPO/counsel):** editing the live `setnayan.com/privacy` notice (code-repo change + legal disclosure), or flipping any feature flag.

### Correction — 2026-07-13: "dependents" is generic, not a minors registry

Owner: *a dependent "can be a dog, a cat, or anyone — there is no specification that it needs to be a child."* This audit (§A row 2, §C, and the "minors' data" framing throughout) over-characterized the dependents table as a minors registry. It is now a generic **"someone (or something) you care for"** list with a `dependent_kind` (person / pet / other) — app PR #3219. Only `kind=person` may carry a birth date / religion / sex under the age fence, and only there does minors' SPI arise (as a **conditional sub-case**, when the adult enters a child). Pets/other carry no sensitive data. Treat every "dependents = minors' data" statement in §A/§C as reframed by this note; the dossier §3/§5 and binding policy were updated to match.

### Correction — 2026-07-13: the live notice was better than first reported

When the `/privacy` notice was edited (PR #3215), reading `origin/main` directly revealed the earlier extraction (agent, §A row 5 + §B) was from a **stale local checkout**: the deployed notice **already** carried a proper opt-in **Biometric** section (no "denies biometrics" line) and a **Device identifier (fraud prevention)** section. So gaps #5 (biometric denial) and the "notice omits device fingerprint" claim were **not real on the live site**. The genuine notice gaps were narrower — faith/family/honoree/e-gift + Anthropic/Suno — and those are what PR #3215 added. The dossier §5/§4/§11 were corrected to match. Treat §A row 5 and the §B "device-fingerprint disclosure" bullet as superseded by this note.

### Update — 2026-07-13: dossier upgraded to a submittable v2.0

Owner: *"edit it and update so that will be the document we can submit NPC."*

`NPC_Privacy_Compliance_Dossier_2026-07-12.md` was rewritten to **v2.0** and the `.docx` mirror regenerated. It now closes the **document-side** gaps from §A/§B: the ROPA (§3) covers all 18 processing activities incl. self-profile religion/civil/gender, the dependents/godparents family graph, event honoree/`signature_details` data, e-gift handles, and vendor-verification identity; the SPI declaration (§5) enumerates every sensitive category (was biometric-only); the subprocessor list (§7) adds Persona/TikTok/Suno; retention aligns to the 07-11 schedule's statutory floors. Owner decisions applied: **device fingerprint = OFF/dormant**; **minors' signature\_details SPI = documented as-is**; DPO contact `dpo@setnayan.com` + 15-day SLA (matching the live surfaces). A consolidated **§11 "Open items before filing"** carries the residue: external counsel review (the final gate — this is a DPO draft, not legal advice), the **public /privacy notice** reconciliation (add faith/minors/e-gift/fingerprint disclosures + fix the biometric denial), and the older-corpus alignment (gmail→dpo@, 7→15-day SLA, 10-yr floor + vendor class + Persona/TikTok/Suno into the binding policy). **Still not done — needs owner/counsel:** the notice edit and external legal sign-off.